

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 711

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING CHAPTER 12, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-1204A, IDAHO CODE, TO ESTABLISH PROVISIONS FOR ALTERNATIVE AUTHORIZATION OF SCHOOL ADMINISTRATORS; AMENDING SECTION 33-320, IDAHO CODE, TO AUTHORIZE THE USE OF FUNDS FOR ADMINISTRATOR MENTORING AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 12, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-1204A, Idaho Code, and to read as follows:

33-1204A. ALTERNATIVE AUTHORIZATION PROGRAM -- ADMINISTRATORS. (1) An individual who does not otherwise hold an administrator certificate required for employment as a school principal or superintendent may satisfy the standards of employment for such positions, or similar positions, through the alternative authorization program, which is hereby established to provide a nontraditional pathway to certification under an interim certificate. The alternative authorization program permits a school district board of trustees to request issuance of a three (3) year interim certificate for a qualified candidate. The program shall include two (2) pathways for authorization:

(a) A "grow your own" pathway for experienced Idaho educators requiring leadership development; and

(b) An "executive leadership" pathway for individuals transitioning from business, military, government, nonprofit, or other sectors who possess leadership and management expertise and require preparation in education systems.

(2) To be eligible for alternative authorization as provided in this section, an applicant shall:

(a) Pass a criminal history check as provided in section 33-130, Idaho Code;

(b) Hold, at a minimum, a bachelor's degree or its equivalent from a regionally or nationally accredited college or university;

(c) Submit a letter from the school district board of trustees affirming that the applicant demonstrates leadership knowledge and skills, stating the district's intent to employ the applicant, and committing to provide mentoring as required pursuant to subsection (5) of this section; and

(d) Complete coursework consisting of no less than three (3) semester credits in the statewide framework for teacher evaluations, including a laboratory or applied component.

1 (3) An applicant who meets the eligibility requirements set forth in
2 subsection (2) of this section shall also satisfy one (1) of the following
3 experience pathways to be eligible for alternative authorization:

4 (a) The "grow your own" pathway, which requires no less than five (5)
5 years of certified teaching experience in one (1) or more Idaho public
6 schools; or

7 (b) The "executive leadership" pathway, which requires demonstrated
8 professional competency in management or leadership through no less
9 than five (5) years of experience in one (1) or more of the following:

10 (i) Higher education;

11 (ii) Government service;

12 (iii) Nonprofit organization service;

13 (iv) Private sector service;

14 (v) Military service at the officer level; or

15 (vi) Equivalent experience as determined by the state department
16 of education.

17 (4) Prior to the issuance of an interim certificate, the sponsoring
18 school district, in collaboration with the state department of education,
19 shall conduct an initial competency assessment using criteria aligned with
20 Idaho administrator standards as adopted by the state board of education to
21 identify any gaps in the applicant's knowledge or skills. If deficiencies
22 are identified, the applicant shall complete targeted coursework, profes-
23 sional development, or learning experiences consisting of no less than six
24 (6) semester credits or the equivalent. Such instruction may include but
25 is not limited to school law, public school finance, special education, and
26 instructional leadership.

27 (5) (a) An individual authorized for an interim certificate pursuant to
28 this section shall receive structured, embedded mentoring from a cer-
29 tified administrator throughout the three (3) year term of the interim
30 certificate. Such mentoring shall include:

31 (i) Assignment by the sponsoring school district, subject to cri-
32 teria established by the state department of education, of a men-
33 tor who holds an Idaho administrator certificate and has no less
34 than five (5) years of experience in a comparable administrative
35 role;

36 (ii) A minimum of seventy (70) clock hours of mentoring during
37 the first two (2) years aligned to a personalized learning plan
38 addressing areas identified for growth in the initial competency
39 assessment, including budgeting, student achievement analysis,
40 employee evaluation, strategic planning, conflict management,
41 school board relations, and special education law;

42 (iii) Ongoing evaluation and support throughout the interim cer-
43 tificate period; and

44 (iv) Submission of an annual mentoring summary by the mentor to
45 the state department of education that includes an assessment of
46 the individual's progress toward required competencies. The de-
47 partment shall review such summary for program oversight purposes
48 and provide feedback to the mentor regarding mentoring effective-
49 ness.

(b) The sponsoring school district shall compensate the mentor and may use funds appropriated pursuant to section 33-320, Idaho Code, for this purpose.

(6) An individual authorized for interim certification pursuant to this section shall be subject to oversight by the professional standards commission as provided in section 33-1208, Idaho Code. The state board of education may deny issuance of an interim certificate for any reason that would constitute grounds for suspension or revocation of a certificate.

(7) An interim certificate issued pursuant to this section may be renewed annually for a period not to exceed three (3) years, contingent on receipt of proficient performance evaluations from the school district board of trustees and satisfactory completion of the mentoring requirements set forth in subsection (5) of this section. Upon completion, the individual shall be eligible for issuance of a standard administrator certificate with principal or superintendent endorsements.

(8) An individual who successfully completes the alternative authorization program and is issued a standard administrator certificate shall remain subject to ongoing review, including annual professional development requirements aligned with state standards.

SECTION 2. That Section 33-320, Idaho Code, be, and the same is hereby amended to read as follows:

33-320. CONTINUOUS IMPROVEMENT PLANS AND TRAINING. (1) Each school district and public charter school in Idaho shall develop an annual plan that is part of a continuous focus on improving the student performance of the district or public charter school. A public charter school may use its performance certificate in lieu of a separate continuous improvement plan.

(2) (a) The board of trustees and the superintendent shall collaborate on the plan and engage students, parents, educators, and the community as appropriate. The board of directors and the administrator of a public charter school shall collaborate on the plan and engage students, parents, educators, and the community as appropriate. All continuous improvement plans must be approved by the local governing board.

(b) The annual continuous improvement plan shall:

(i) Be data-driven, specifically in student outcomes, and shall include, but not be limited to, analyses of demographic data, student achievement and growth data, graduation rates, and college and career readiness;

(ii) Set clear and measurable targets based on student outcomes;

(iii) Include a clearly developed and articulated vision and mission;

(iv) Include key indicators for monitoring performance;

(v) Include student literacy proficiency goals and targets and how progress toward those outcomes will be measured;

(vi) Include, as applicable to the grade ranges served, trajectory growth targets toward literacy proficiency;

(vii) Include, as applicable to the grade ranges served, college and career advising and mentoring goals and how progress toward those outcomes will be measured;

(viii) Include the individual staff performance on each of the performance criteria as defined in section 33-1001, Idaho Code, including measurable student achievement and student success indicator targets and the percentage of students meeting those targets. Data will be aggregated at the grade range, subject, or performance indicator, as determined by the commission and allowed pursuant to section 33-133, Idaho Code;

(ix) Include, at a minimum, the student achievement and growth metrics for the state accountability framework. Student achievement and growth will be reported on each school and district's report card as required by the state board of education and published by the state department of education; and

(x) Include a report of progress toward the previous year's improvement goals.

(c) The annual continuous improvement plan must be reviewed and updated annually no later than October 1 of each year.

(d) The board of trustees or the board of directors shall continuously monitor progress toward the goals by utilizing relevant data to measure growth. The progress shall be included in evaluations of the district superintendent or administrator of a public charter school.

(3) The plan must be made available to the public and shall be posted on the school district or charter school website.

(4) Of the moneys appropriated in the public schools educational support program, up to six thousand six hundred dollars (\$6,600) shall be distributed to each school district and public charter school to be expended for training purposes for district superintendents and boards of trustees, public charter school administrators, and boards of directors. Funds shall be distributed on a reimbursement basis based on a process prescribed by the superintendent of public instruction. Qualified training shall include training for continuous improvement processes and planning, strategic planning, finance, superintendent evaluations, public charter administrator evaluations, ethics, and governance.

(5) Funds appropriated pursuant to this section may be used to support administrator mentoring programs, including mentoring provided in section 33-1204A, Idaho Code.

~~(5)~~ (6) The state board of education shall be granted rulemaking authority to establish appropriate procedures, qualifications, and guidelines for qualified training providers and shall prepare a list of qualified training providers within the state of Idaho.

~~(6)~~ (7) (a) There is hereby established in the office of the state board of education a state commission for education excellence, the purpose of which will be to study and discuss continuous improvement plans established pursuant to this section and measurable student achievement and student success indicators described in section 33-1001, Idaho Code, that have been submitted to the state. The members of the commission shall include:

(i) One (1) representative of the state board of education, appointed by such board;

(ii) One (1) representative of the state department of education, appointed by such department;

(iii) One (1) representative of the office of the governor, appointed by the governor;

(iv) One (1) representative of business and industry, appointed by the division of career technical education;

(v) Two (2) members of the majority caucus and one (1) member of the minority caucus in the senate, appointed by the president pro tempore of the senate;

(vi) Two (2) members of the majority caucus and one (1) member of the minority caucus in the house of representatives, appointed by the speaker of the house of representatives;

(vii) One (1) parent of a public school student, appointed by the governor;

(viii) One (1) person who has been recognized as the Idaho teacher of the year, appointed by the governor;

(ix) One (1) representative of the Idaho school boards association, appointed by such association; and

(x) One (1) representative of the Idaho association of school administrators, appointed by such association.

(b) The commission shall be staffed by the office of the state board of education. Additional staff support from the legislative services office may be provided as needed.

(c) It is the intent of the legislature that the state commission for education excellence analyze the measurable student achievement data and continuous improvement plans in the various districts and public charter schools in Idaho and then discuss and consider changes in statute or rule that could enhance outcomes. The commission shall determine some high-performing schools and districts, work to leverage their best practices to the rest of the state, and listen to ideas regarding defining and celebrating successes in student achievement. The commission shall meet at least twice annually. One (1) meeting shall be held in the fall for the purpose of studying and discussing the continuous improvement plans' performance measures and benchmarks, and one (1) meeting shall be held in the summer, after data for the prior academic year have been compiled and submitted to the commission, to review reports on statewide student success indicator achievement metrics submitted to the commission by the state department of education and to discuss possible ways to improve desired student outcomes. All such data and related statewide reports shall also be provided to all legislators in Idaho not serving on the commission. A school district's or public charter school's continuous improvement plan shall show how the measurable student achievement and student success indicator targets are aligned with the continuous improvement plan described in this section. The continuous improvement plan shall be submitted to the state board of education or the board's designee no later than October 1 of each year.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after its passage and approval.